

Rajan Singh Yadav v. Dhakinanchal Electricity Distribution Corp. Ltd.

High Court of Judicature at Allahabad · Division Bench · 7 October 2013 · Writ-C No. 55399 of 2013 · **Writ disposed; reconnection on 1/3rd deposit; objections to be decided.**

HEADNOTE

The Allahabad High Court declined to quash a provisional assessment notice that itself allowed fifteen days to object, holding that alleged non-compliance with the U.P. Electricity Supply Code, 2005 must be raised in that reply. Supply having been disconnected on the inspection date, reconnection was directed on deposit of one-third of the assessed amount, subject to final assessment after the objections were decided.

FACTUAL SUMMARY

Rajan Singh Yadav challenged a provisional assessment notice dated 13 September 2013 issued by Dhakinanchal Electricity Distribution Corporation Ltd. after an inspection on 12 September 2013, alleging that the notice was not in accordance with the U.P. Electricity Supply Code, 2005. His supply had been disconnected on the inspection date. The notice itself invited objections within fifteen days. No notice was issued to private respondents 3 to 11.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

provisional assessment objection and reconnection on part-deposit

HOLDING

Where a provisional assessment notice itself grants fifteen days to object, the High Court will not quash it for alleged non-compliance with the U.P. Electricity Supply Code, 2005; those points must be taken in the consumer's reply. If supply has been disconnected, reconnection shall be granted on deposit of one-third of the assessed amount, subject to final assessment after the objections are decided. ¶ 1

PRINCIPLE TAGS

law-as-of-final-assessment-date

The Allahabad High Court declined to quash a provisional assessment notice that itself allowed fifteen days to object, holding that alleged non-compliance with the U.P. Electricity Supply Code, 2005 must be raised in that reply.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PROVISIONAL ASSESSMENT NOTICE DATED 13.09.2013 WAS ISSUED IN ACCORDANCE WITH THE U.P. ELECTRICITY SUPPLY CODE, 2005

Left to be raised in the petitioner's objection and decided at final assessment. ¶ 1